

Court No. - 32

Case :- WRIT - C No. - 17353 of 2022

Petitioner :- Padma Seth

Respondent :- State Of U.P. And 4 Others

Counsel for Petitioner :- Girish Kumar Gupta

Counsel for Respondent :- C.S.C., Udit Chandra

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vikram D. Chauhan, J.

The petitioner herein is in occupation of the premises in question which is shop no. D17/144-1, Bhuteshwar Gali, Varanasi.

It seems that certain objections are being raised by the respondent nos. 3 and 4 with regard to the electricity connection applied by the petitioner for the shop in question.

It is stated in the writ petition that the petitioner is real sister of respondent nos. 3 and 4. Certain civil proceedings are being undertaken by the parties to agitate their rights over the shop in question.

Sri Akhilesh Kumar Singh learned Advocate has put in appearance on behalf of respondent nos. 3 and 4. He is raising serious objection to the mandamus sought by the petitioner to install electricity connection in the shop in question.

Sri Udit Chandra learned Advocate has put in appearance on behalf of respondent no. 2.

On a pointed query made by the Court as to how the situation in question can be addressed, Sri Udit Chandra learned Advocate appearing for the respondent no. 2 stated that the electricity connection can be granted in the name of the petitioner on an indemnity bond furnished in accordance with Clause 4.4 (as per Annexure 4.2) of the Electricity Supply Code, 2005.

To this submission of Sri Udit Chandra learned Advocate for the respondent no. 2, Sri Girish Kumar Gupta learned Advocate for the petitioner states that the petitioner herein is ready to furnish the indemnity bond, to comply the conditions of Clause 4.4 of the Electricity Supply Code, 2005.

In view of the above, we **dispose of** the present writ petition with the direction that the petitioner shall furnish the indemnity bond strictly in accordance with Clause 4.4 (as per Annexure

4.2) of the Electricity Supply Code, 2005 and complete all necessary formalities for installation of electricity connection in the shop in question.

On completion of the said formalities, the respondent no. 2 shall be under obligation to grant electricity connection and energize the same without adverting to the objections being raised by respondent no. 3 and 4.

It is, however, open for the respondent nos. 3 and 4 to pursue their stand in the pending proceedings before the competent court.

Order Date :- 21.6.2022

Brijesh